

STATE OF NEW YORK

8158--A

2025-2026 Regular Sessions

IN SENATE

May 15, 2025

Introduced by Sen. JACKSON -- read twice and ordered printed, and when printed to be committed to the Committee on Civil Service and Pensions -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the retirement and social security law, in relation to accidental disability retirement for deputy sheriffs

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph 3 of subdivision e of section 556 of the retire-
2 ment and social security law, as added by chapter 165 of the laws of
3 1995, is amended to read as follows:

4 3. A pension of two-thirds of [~~his or her~~] the member's final average
5 salary; provided, however, a deputy sheriff shall receive a pension of
6 three-quarters of their final average salary. The payment of such
7 pension shall be subject to the provisions of section [~~three hundred~~]
8 sixty-four of this chapter.

9 § 2. This act shall take effect immediately.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

This bill would modify the accidental retirement benefit for deputy sheriffs covered under Article 14-B of the Retirement and Social Security Law (RSSL) to be three-quarters of their final average salary, increased from the current benefit of two-thirds of final average salary.

Insofar as this bill affects the New York State and Local Employees' Retirement System (NYSLERS), if this legislation is enacted during the 2025 Legislative Session, there would be an increase in accrued liabilities of approximately \$3.14 million, due to the past service accruals of affected members, which would be shared by the State of New York and all local participating employers. This will marginally increase the billing rates charged annually to all participating employers, beginning with the fiscal year ending March 31, 2026

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [~~-~~] is old law to be omitted.

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In addition to the cost for past service above, there would be a cost for future service accruals which would increase the annual billing rates for affected members by 0.2% of salary.

These estimated costs are based on 3,489 affected members with annual salary of approximately \$299 million as of March 31, 2024.

Summary of relevant resources:

Membership data as of March 31, 2024 was used in measuring the impact of the proposed change, the same data used in the April 1, 2024 actuarial valuation. Distributions and other statistics can be found in the 2024 Report of the Actuary and the 2024 Annual Comprehensive Financial Report. The actuarial assumptions and methods used are described in the 2024 Annual Report to the Comptroller on Actuarial Assumptions, and the Codes, Rules and Regulations of the State of New York: Audit and Control. The Market Assets and GASB Disclosures are found in the March 31, 2024 New York State and Local Retirement System Financial Statements and Supplementary Information.

This fiscal note does not constitute a legal opinion on the viability of the proposed change nor is it intended to serve as a substitute for the professional judgment of an attorney.

This estimate, dated May 15, 2025, and intended for use only during the 2025 Legislative Session, is Fiscal Note No. 2025-169. As Chief Actuary of the New York State and Local Retirement System, I, Aaron Schottin Young, hereby certify that this analysis complies with applicable Actuarial Standards of Practice as well as the Code of Professional Conduct and Qualification Standards for Actuaries Issuing Statements of Actuarial Opinion of the American Academy of Actuaries, of which I am a member.